

Code of Civil Procedure section 1048, subdivision (a) states “When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.”

The court finds these actions involve common questions of law and fact and arise from the same transaction or occurrence, therefore consolidation for all purposes is warranted.

In general, each lawsuit is based on the same operative facts. For these cases, the plaintiffs allege that: (1) Doug Boyer Construction served as the general contractor for the Compass Pointe II project; (2) the subcontractor entered into an agreement with Doug Boyer Construction to perform a portion of the work on the project; (3) the subcontractor performed the work; and (4) Doug Boyer Construction failed to make payment. In addition, Doug Boyer has filed substantially identical third-party complaints in several of the actions against Compass Pointe Off Campus Partnership B, LLC and Merced DIP Lender, LLC, alleging that those entities are responsible for the nonpayment giving rise to the subcontractor claims. (Boyer Memo 8:11-21)

The opposition by Merced DIP Lender, LLC does not dispute this and opposes the consolidation based on the procedural posture in 24CV-06543. While consolidation may disrupt ongoing negotiations in that matter or may delay any dispositive motion that may be filed by Merced DIP Lender, LLC, it does not outright extinguish those efforts, nor do those efforts outweigh the efficiencies gained through consolidation. The purpose of consolidation is to promote overall convenience and judicial economy, particularly where there is a common question of law and fact, as there is here.

The opposition requests that any consolidation either exclude 24CV-06543 or limit consolidation for discovery purposes only.

The court denies both requests. To allow 24CV-06543 to proceed separately would not only create substantial inefficiencies for the court and parties, but it could also result in inconsistent rulings. Further, the court is not aware of any authority for consolidation only for purposes of discovery. While the parties are free to stipulate that all discovery in any of the related cases be deemed to have been propounded and answered in all of the cases, case law only recognizes two types of consolidation: that for purposes of trial only and that for all purposes. (See *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147 [Under the statute and the case law, there are thus two types of consolidation: a consolidation for purposes of trial only . . .; and a complete consolidation or consolidation for all purposes . . .].)

Accordingly, the motion to consolidate for all purposes is granted.

24CV-04539 is to be designated as the master file. All subsequent documents must be filed only in 24CV-04539. (Rule of Ct. 3.350)

Case Management Conference

Appearance required.

Motion to Consolidate Actions

Defendant Doug Boyer Construction's motion to consolidate actions for all purposes is GRANTED.

Case Nos. 24CV-06525, 24CV-06543, 25CV-02184, and 25CV-06356 are to be consolidated with 24CV-04539.

Code of Civil Procedure section 1048, subdivision (a) states "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay."

The court finds these actions involve common questions of law and fact and arise from the same transaction or occurrence, therefore consolidation for all purposes is warranted.

In general, each lawsuit is based on the same operative facts. For these cases, the plaintiffs allege that: (1) Doug Boyer Construction served as the general contractor for the Compass Pointe II project; (2) the subcontractor entered into an agreement with Doug Boyer Construction to perform a portion of the work on the project; (3) the subcontractor performed the work; and (4) Doug Boyer Construction failed to make payment. In addition, Doug Boyer has filed substantially identical third-party complaints in several of the actions against Compass Pointe Off Campus Partnership B, LLC and Merced DIP Lender, LLC, alleging that those entities are responsible for the nonpayment giving rise to the subcontractor claims. (Boyer Memo 8:11-21)

The opposition by Merced DIP Lender, LLC does not dispute this and opposes the consolidation based on the procedural posture in 24CV-06543. While consolidation may disrupt ongoing negotiations in that matter or may delay any dispositive motion that may be filed by Merced DIP Lender, LLC, it does not outright extinguish those efforts, nor do those efforts outweigh the efficiencies gained through consolidation. The purpose of consolidation is to promote overall convenience and judicial economy, particularly where there is a common question of law and fact, as there is here.

The opposition requests that any consolidation either exclude 24CV-06543 or limit consolidation for discovery purposes only.

The court denies both requests. To allow 24CV-06543 to proceed separately would not only create substantial inefficiencies for the court and parties, but it could also result in inconsistent rulings. Further, the court is not aware of any authority for consolidation only for purposes of discovery. While the parties are free to stipulate that all discovery in any of the related cases be deemed to have been propounded and answered in all of the cases, case law only recognizes two types of consolidation: that for purposes of trial only and that for all purposes. (See *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147 [Under the statute and the case law, there are thus two types of consolidation:

a consolidation for purposes of trial only . . .; and a complete consolidation or consolidation for all purposes . . .].)

Accordingly, the motion to consolidate for all purposes is granted.

24CV-04539 is to be designated as the master file. All subsequent documents must be filed only in 24CV-04539. (Rule of Ct. 3.350)

Case Management Conference

Appearance required.

24CV-06543 Silveira & Son Drywall, Inc. vs Allan Boyer, et al.

Motion to Consolidate Actions

Defendant Doug Boyer Construction's motion to consolidate actions for all purposes is GRANTED.

Case Nos. 24CV-06525, 24CV-06543, 25CV-02184, and 25CV-06356 are to be consolidated with 24CV-04539.

Code of Civil Procedure section 1048, subdivision (a) states "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay."

The court finds these actions involve common questions of law and fact and arise from the same transaction or occurrence, therefore consolidation for all purposes is warranted.

In general, each lawsuit is based on the same operative facts. For these cases, the plaintiffs allege that: (1) Doug Boyer Construction served as the general contractor for the Compass Pointe II project; (2) the subcontractor entered into an agreement with Doug Boyer Construction to perform a portion of the work on the project; (3) the subcontractor performed the work; and (4) Doug Boyer Construction failed to make payment. In addition, Doug Boyer has filed substantially identical third-party complaints in several of the actions against Compass Pointe Off Campus Partnership B, LLC and Merced DIP Lender, LLC, alleging that those entities are responsible for the nonpayment giving rise to the subcontractor claims. (Boyer Memo 8:11-21)

The opposition by Merced DIP Lender, LLC does not dispute this and opposes the consolidation based on the procedural posture in 24CV-06543. While consolidation may disrupt ongoing negotiations in that matter or may delay any dispositive motion that may be filed by Merced DIP Lender, LLC, it does not outright extinguish those efforts, nor do those efforts outweigh the efficiencies gained through consolidation. The purpose of consolidation is to promote overall convenience and judicial economy, particularly where there is a common question of law and fact, as there is here.